

Exercise 1: Privacy and Data Protection

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1. Valid Consent

Service examined: **Google Account** – the "Web & App Activity" consent setting, found under Google Account → Data & Privacy → Activity controls (myaccount.google.com/activitycontrols).

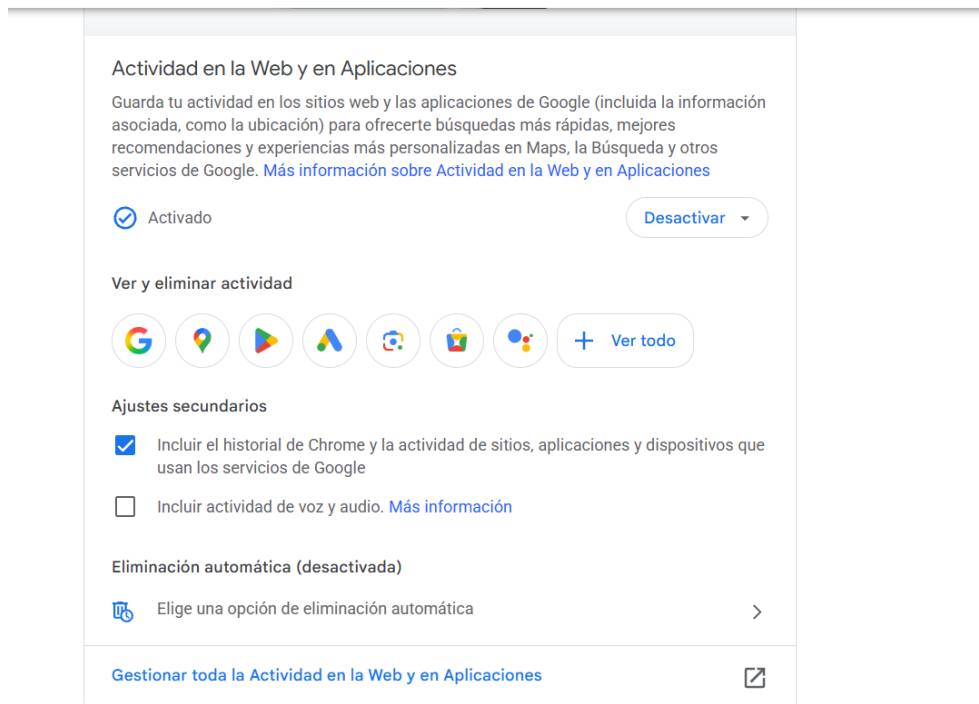


Figure 1. Google's "Web & App Activity" consent control, with sub-settings for including Chrome history and voice/audio activity, and a direct option to disable the setting or auto-delete collected data.

Under Art 6 (1) a) GDPR, consent is a lawful basis for processing. Art 4 (11) GDPR defines valid consent as an indication of the data subject's wishes that is *freely given, specific, informed and unambiguous*. Art 7 GDPR further requires that consent be as easy to withdraw as to give, and that requests be presented in a clear, plain and distinguishable form.

Assessing Google's implementation against these four conditions:

- **Freely given (Art 4(11), Art 7(4)):** The setting is not bundled with account creation and is not a condition for using the service, so it satisfies Art 7 (4), which prohibits conditioning a contract on consent that is not necessary for that contract. The toggle can be switched off at any time with a single click ("Desactivar"), meeting the withdrawal requirement of Art 7 (3).

- **Specific (Art 4(11)):** This is the weakest point. A single toggle covers several distinct processing purposes at once (faster search, Maps recommendations, personalised ads and content across multiple products). GDPR requires consent to be obtained separately for each distinct purpose; bundling several purposes under one switch arguably falls short of the "specific" requirement, even though sub-options (Chrome history, voice/audio) provide partial granularity.
- **Informed (Art 4(11), related to Art 13):** A short description of what is collected and why is shown directly on the screen, with a "More information" link for further detail. This is a reasonable attempt at transparency, though the full purposes, retention periods and any third parties involved are not all visible on this single screen and require further navigation.
- **Unambiguous / clear affirmative action (Art 4(11), Recital 32):** The setting uses an explicit toggle (on/off) rather than a pre-ticked box or inferred consent, which matches the "clear affirmative action" standard GDPR requires.

Conclusion: Google's consent mechanism largely matches the GDPR's requirements – it is revocable, uses an affirmative opt-in action, and is reasonably transparent. Its main weakness relative to the GDPR standard is granularity: several distinct processing purposes are consented to through a single toggle, which sits uneasily with the "specific" consent requirement of Art 4 (11) GDPR.

2. Right to Access Personal Data

Service examined: **Google**, exercising the right of access via Google Takeout (takeout.google.com), requesting an export of Gmail data.

Art 15 (1) GDPR gives the data subject the right to obtain confirmation of whether personal data is being processed, and if so, to access it together with information on the purposes of processing, the categories of data, any recipients, the storage period, and the existence of other rights. Art 15 (3) grants the right to a copy of the data itself. Art 20 GDPR (right to data portability) additionally requires that, where processing is based on consent, this copy be provided in a structured, commonly used and machine-readable format. Under Art 12 (3), the controller must respond without undue delay and within one month of the request (extendable by two further months for complex requests), and Art 12 (5) states that the first copy must be provided free of charge.

The screenshot shows the Google Takeout interface. At the top, there is a header with a back arrow and the text "Google Takeout". Below this, a step indicator shows "2" and the text "Elige el tipo de archivo, la frecuencia y el destino". Underneath, there is a section titled "Transferir a:" with a dropdown menu set to "Enviar enlace de descarga por correo electrónico". Below this, there is a paragraph of text: "Cuando tus archivos estén listos, recibirás un correo electrónico con un enlace de descarga. Tendrás una semana para descargar los archivos. [Más información](#) sobre cómo localizar, acceder y compartir tus datos." Below this, there is a section titled "Frecuencia" with three radio button options: "Exportar una vez" (selected), "Exportar cada mes durante 1 año", and "Exportar cada 2 meses durante 1 año". Below this, there is a section titled "Tipo y tamaño de archivo" with a dropdown menu set to ".zip".

Figure 2. Google Takeout lets the data subject choose the delivery method (download link by e-mail) and export frequency.

← Google Takeout

2 Elige el tipo de archivo, la frecuencia y el destino

Exportaciones

Tipo y tamaño de archivo

Tipo de archivo:

.zip

Los archivos ZIP se pueden abrir en casi cualquier ordenador

Tamaño del archivo:

2 GB

Puede que el resultado de tu solicitud se entregue en varios archivos

Crear exportación

Progreso de la exportación

Figure 3. File format (.zip) and maximum file size (2 GB, split into several files if needed) are configurable before the export is created.

← Google Takeout

Google está creando una copia de tus datos de Google para que puedas descargarlos y guardarlos en tu propia copia de seguridad de Google.

CREA UNA EXPORTACIÓN

✓ Selecciona los datos que incluir Productos seleccionados: 1 de 61

✓ Elige el tipo de archivo, la frecuencia y el destino

Progreso de la exportación

Google está creando una copia de los datos de Correo

Este proceso puede tardar mucho tiempo (horas o quizá días) en completarse. Recibirás un correo electrónico cuando la exportación haya terminado.

Creado: 22 de septiembre de 2026 a las 10:09

✕ Cancelar exportación + Crear otra exportación

Figure 4. Confirmation that the export was created on 22 September 2026 at 10:09. Google states the process may take "hours or even days", well within the one-month statutory limit of Art 12 (3) GDPR.

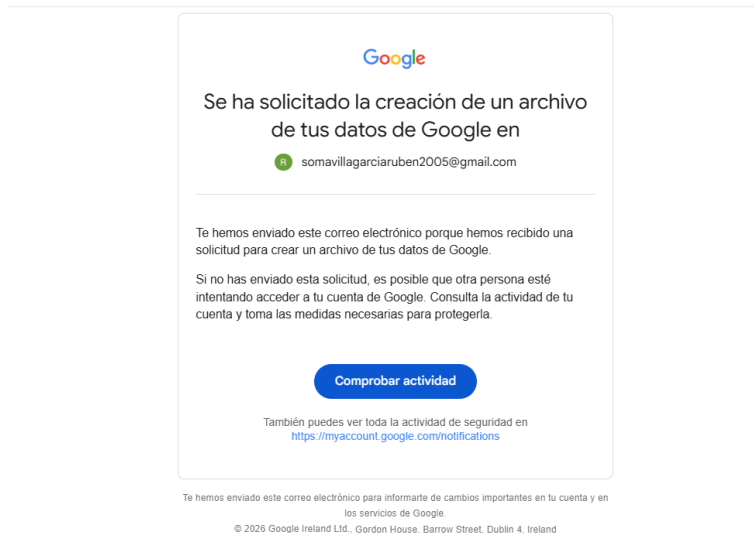


Figure 5. E-mail confirmation received almost instantly after the request, notifying that a data export had been requested for the account.

Assessment: Google Takeout is a well-implemented, self-service mechanism for exercising the right of access. It performs strongly on the Art 15 (3) / Art 20 requirements: the data is delivered as a copy, free of charge, in structured and widely-supported machine-readable formats (MBOX for messages, JSON for settings), which is directly usable by another service – exactly what data portability is meant to enable. The response time comfortably meets the Art 12 (3) one-month deadline (an immediate confirmation e-mail, with the actual file promised within hours to days).

The main gap relative to the letter of Art 15 (1) is that the export flow delivers the raw personal data itself, but does not explicitly restate, at the point of delivery, the supplementary information listed in Art 15 (1) (a)-(d): the specific purposes of processing, the exact retention period for each category, or any recipients data has been shared with. That information exists elsewhere (Google's Privacy Policy and per-product help pages), but is not bundled into the access response itself, so a user would need to consult separate documentation to obtain the complete picture the article envisages.

3. Anonymisation & Pseudonymisation

Art 4 (5) GDPR defines **pseudonymisation** as processing personal data in such a way that it can no longer be attributed to a specific data subject without the use of additional information, provided that this additional information is kept separately and is subject to technical and organisational measures preventing re-identification. In practice, this means replacing direct identifiers (e.g. a name) with an artificial identifier (e.g. a code), while keeping a separate, protected mapping table that allows the original identity to be restored if needed.

Anonymisation is not defined by a specific GDPR article, but is described in Recital 26: once data is anonymised so that the data subject is no longer identifiable, it falls outside the scope of the GDPR altogether. Anonymisation is meant to be irreversible – there should be no reasonable way, using any means likely to be used, to re-identify the individual again.

Key difference: reversibility. Pseudonymised data is still personal data under GDPR, because re-identification remains possible with the right key; anonymised data is not personal data at all, because re-identification is (in principle) no longer possible by any means. As covered in this week's material on redlining, this distinction matters in practice because indirect identifiers (e.g. postcode, or a combination of quasi-identifying attributes) can sometimes allow supposedly anonymised data to be re-identified, which is why effective anonymisation is significantly harder to achieve – and to guarantee – than pseudonymisation, and why there is a well-known trade-off between how strongly a dataset is de-identified and how analytically useful it remains (the privacy-utility trade-off).